

CURRENT AFFAIRS



SOUTH CHINA SEA



28th WEEK 2016

UPSC

CAPSULE - 6

ALL EXAMS

11th July to 17th July

GNXX CA06 X28A EN16



CHINA

INDIA

NEPAL

THAILAND

Vietnam

Taiwan

Philippines

Malaysia

Brunei

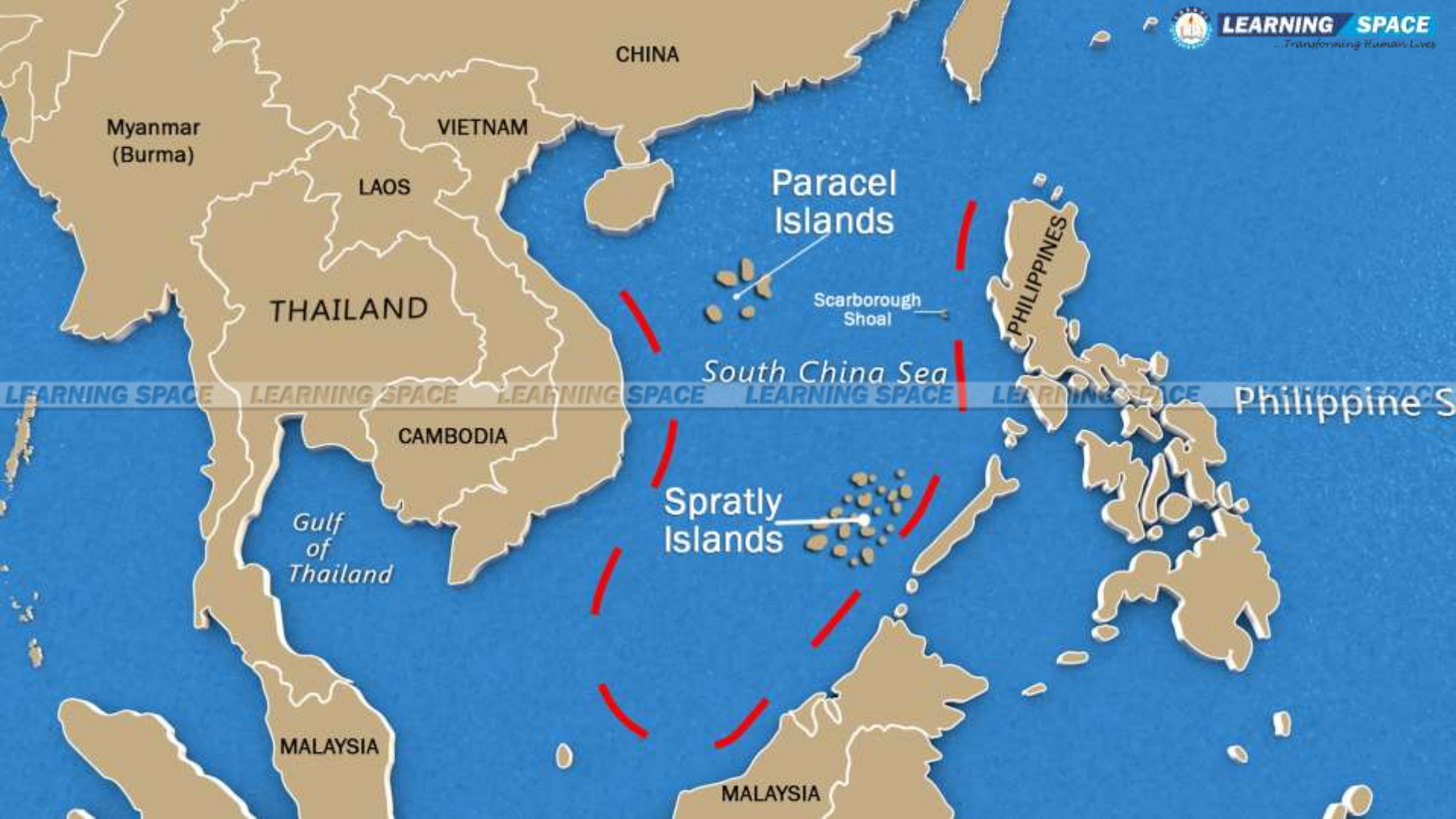
Bay of Bengal

East China Sea

South China Sea

Philippine Sea

Gulf of Thailand





WHY IS IT SO CONTENTIOUS?

1

It is major international sea route. Every year \$ 5 trillion worth shipping takes place. It is almost equal to 40 to 50% of the total shipping.

3

If Nine-dash line is accepted, this area is going to be highly militarised and Freedom of Navigation will be threatened.

5

“Pivot to Asia” doctrine of USA is strengthening security cooperation with Asian countries, primarily as a part of “China’s Containment Policy”.

2

Natural resources like oil and gas, fishing resources is another area for rival claims (However, natural resources are yet to be explored).

4

EEZs of several countries will be usurped by China.

6

If China’s claims are accepted, strategically and economically, no other country will be in a position to compete with China in the long-run.

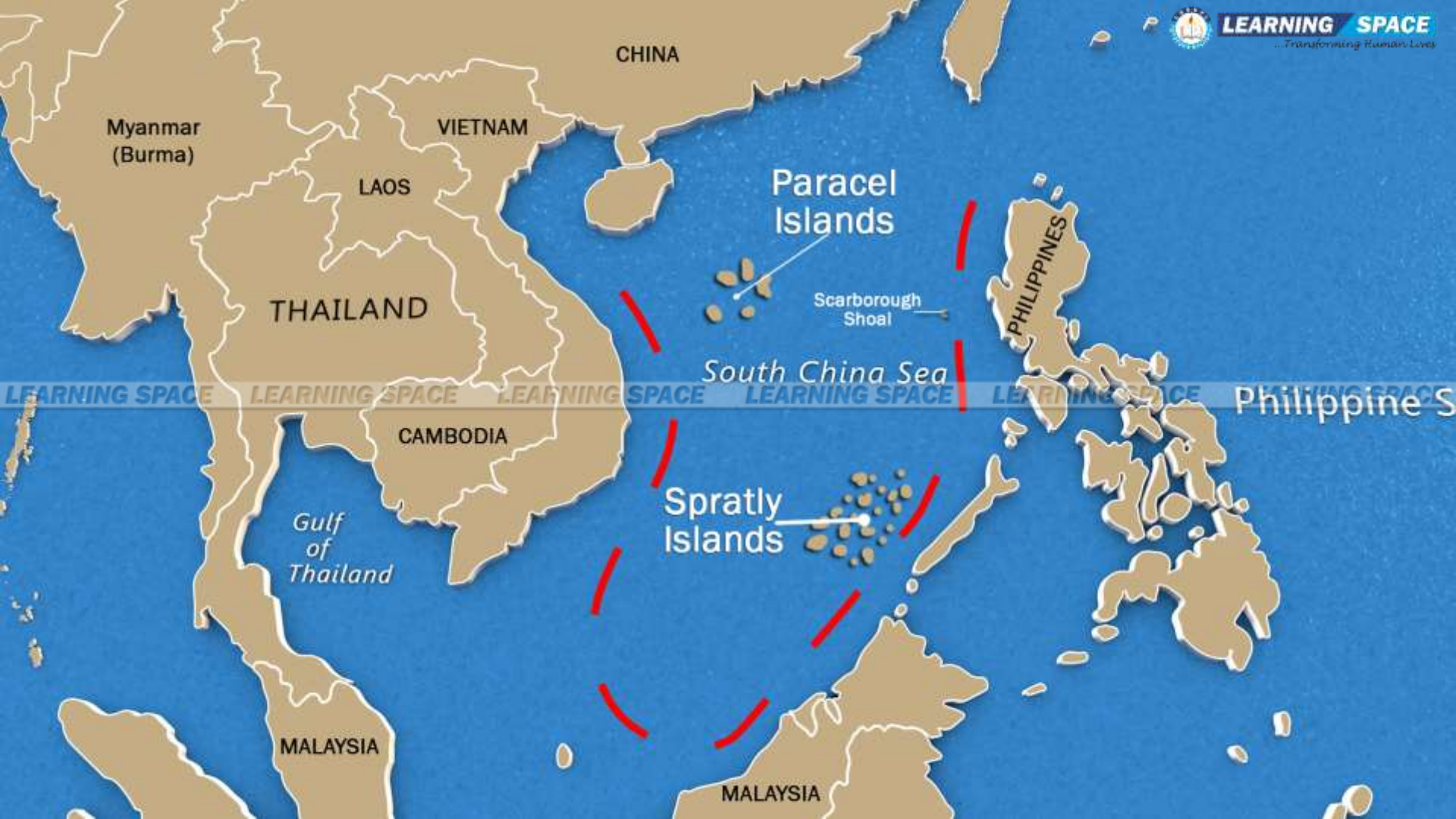


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WHO ARE THE CLAIMANTS IN SOUTH CHINA SEA?



CHINA

- China claims the largest portion defined by “nine-dash line”, but without coordinates.
- It stretches hundreds of miles South and East from Hainan.
- Paracel & Spratly Islands regarded as integral parts, since centuries.
- Accordingly, it issued a map in 1947.

VIETNAM

- No legal right to China.
- It says that it ruled both the Paracels & Spratlys since 17th century.
- China never claimed before 1940s.

PHILIPPINES

- It cites geographical proximity to the Spratly islands as the main basis.
- Claims Scarborough Shoal (called Huangyan, Island in China) which is 160 km from Philippines & 800 km from China.



CHINA

INDIA

NEPAL

THAILAND

Vietnam

Malaysia

Brunei

Philippines

Taiwan

JAPAN

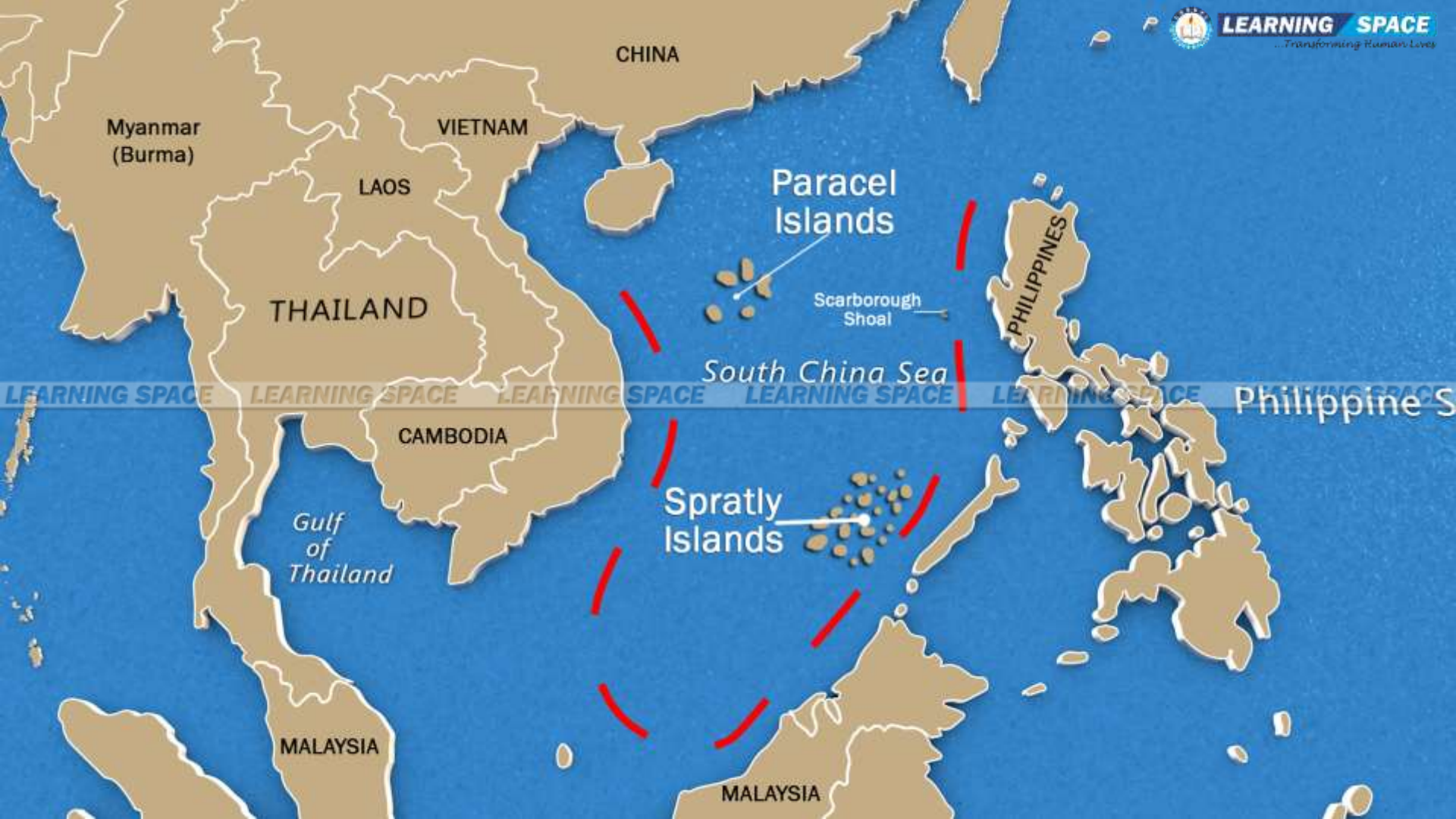
East China Sea

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WHO ARE THE CLAIMANTS IN SOUTH CHINA SEA?



MALAYSIA

- *Claims small number of islands in Spratlys.*
- *Also claims the economic rights as some of the islands fall within the area of EEZ.*

BRUNEI

- *Claims the rights under EEZ as some of the islands falls under the zone of EEZ.*

TAIWAN

- *Taiwan also cites “Nine-dash line” as claimed by China.*





BRUNEI



WHAT IS PERMANENT COURT OF ARBITRATION?



The Hague, Netherlands

It also undertakes mediation, conciliation and other forms of Alternative Dispute Resolution (ADR).

- 1** *IT is established by a treaty in 1899.*
- 2** *It is inter-governmental organisation.*
- 3** *IT is not a court, it provides dispute resolution services to the international community.*
- 4** *It undertakes international arbitration services involving states, state entities, international organisations and private parties.*



North
Atlantic
Ocean

North Sea

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THE HAGUE

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IRELAND

UNITED
KINGDOM

NETHERLANDS

BELGIUM

GERMANY

CZECH



SOUTH CHINA SEA

PCA VERDICT



1

- *China has no legal basis to claim historic rights to the bulk of the South China Sea.*

2

- *China does not have the right to resources within this nine-dash line.*



3

- *It tantamounts to interfering with the economic rights of Philippines in fishing / oil exploration.*

4

- *China damaged the fragile ecosystem.*

The ruling is regarded as legally binding, but PCA has got no mechanism to enforce it.

- *China boycotted the proceedings and finally rejected the verdict.*

WHAT WILL HAPPEN NOW?

- 1** *China may become further aggressive and may continue with the construction of airstrips / establishment of military bases.*
- 2** *USA may send naval ships / military planes to assert Freedom of Navigation and Overflight and it will be further opportunity to strengthen its “Pivot to Asia” doctrine.*
- 3** *Philippines may take support from USA. At the same time, it may not be aggressive against China in view of economic might of China and impending business relations.*
- 4** *ASEAN is divided and is not able to put its weight behind Philippines*



Only time can say whether this will lead to further escalation of tensions between China & the USA !